

appears to overlook that Mr. Chief Justice Warren in *United States v. Brown*, *supra*, concluded that retributive motives on the part of Congress were irrelevant to bill-of-attainder analysis. To the contrary, he said flatly: "It would be archaic to limit the definition of punishment to 'retribution.'" Indeed, he expressly noted that bills of attainder had historically been enacted for regulatory or preventive purposes:

"Historical considerations by no means compel restriction of the bill of attainder ban to instances of retribution. A number of English bills of attainder were enacted for preventive purposes—that is, the legislature made a judgment, undoubtedly based largely on past acts and associations . . . that a given person or group was likely to cause trouble . . . and therefore inflicted deprivations upon that person or group in order to keep it from bringing about the feared event." 381 U. S., at 458-459.

Under the long line of our decisions, therefore, the Court has the heavy burden of demonstrating that legislation which singles out one named individual for deprivation—without any procedural safeguards—of what had for nearly 200 years been treated by all three branches of Government as private property, can survive the prohibition of the Bill of Attainder Clause. In deciding this case, the Court provides the basis for a future Congress to enact yet another Title I, directed at some future former President, or a Member of the House or the Senate because the individual has incurred public disfavor and that of the Congress. Cf. *Powell v. McCormack*, 395 U. S. 486 (1969). As in *United States v. Brown*, Title I, in contrast to Title II, does "not set forth a generally applicable rule," 381 U. S., at 450; it is beyond doubt special legislation doing precisely the evil against which the prohibitions of the "bills of attainder, *ex post facto* laws, and laws impairing the obligation of contracts . . ." were aimed. *Ogden v. Saunders*, 12 Wheat., at 286.